

RP04

Rajasthan High Court and Subordinate Judiciary

Rajasthan Polity and Administration gives 12-14 questions a paper and the High Court reliably contributes 1-2 of them. Judge appointment and the consultation process were asked in 2018 and 2024; the Registrar and Article 229 in 2018 and 2023; the establishment date and first Chief Justice in 2023; the Jaipur Bench in 2024. Format is one-liner, statement-based and Article matching.

This chapter is about one institution with a very memorable birth certificate and a very examinable set of Article numbers. RPSC does not ask you to discuss judicial independence. It asks you the date, the seat, the first Chief Justice, which committee killed the Jaipur Bench, and who appoints the Registrar. Learn the numbers, then learn the hierarchy below the High Court.

Rajasthan High Court and the courts below it

Birth

- Ordinance promulgated 21 June 1949
- Inaugurated 29 August 1949, Jodhpur
- By Rajpramukh Man Singh II
- First CJ - Kamal Kant Verma
- Motto - Satyameva Jayate

Seat and Bench

- Principal seat Jodhpur
- Bench functioned after 1956
- Abolished 1958 - P. Satyanarayana Rao Committee
- Permanent Jaipur Bench 31 January 1977

Articles to memorise

- 214 HC for each state
- 215 court of record
- 217 appointment
- 226 writs
- 227 superintendence
- 229 Registrar and staff

The judges

- Sanctioned strength 50 (38 + 12)
- Retirement 62 years
- Collegium - 1993 and 1998 cases
- NJAC struck down 2015

Subordinate judiciary

- District and Sessions Judge
- Articles 233 to 237
- RJS - Civil Judge cadre
- RHJS - District Judge cadre
- 36 judicial districts

Access to justice

- Legal Services Authorities Act 1987
- RSLSA - CJ is Patron-in-Chief
- Lok Adalat award = decree
- Permanent Lok Adalat, Sec 22B
- Judicial Academy, Jodhpur, 2001

Courts outside the mainstream

- Board of Revenue - Ajmer
- Rajasthan Tax Board - Ajmer
- Civil Services Appellate Tribunal - Jaipur

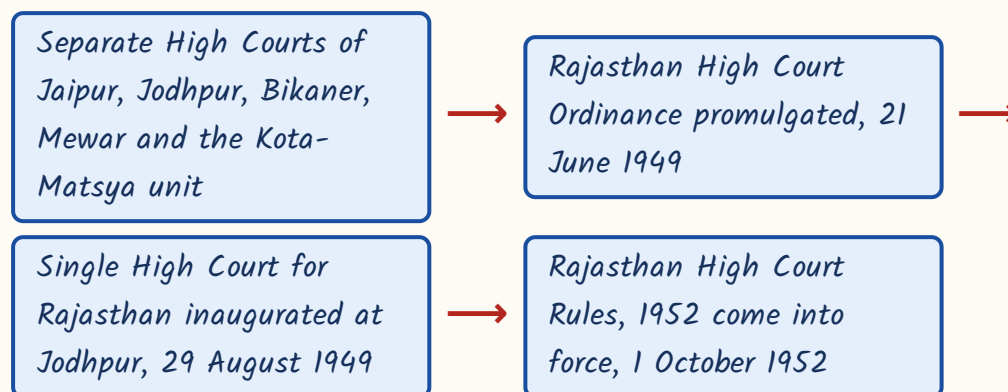
How Rajasthan ended up with one High Court instead of many

Article 214 says there shall be a High Court for each state. Rajasthan's High Court is unusual because it was not built on empty ground. Before 1949 the covenanting princely states each ran their own High Court - Jaipur, Jodhpur,

Bikaner, Mewar (Udaipur) and the Kota unit of the Matsya group. Once those states merged into Rajasthan, five courts for one state made no sense. The princely courts had to be abolished and a single court put in their place.

The instrument was the Rajasthan High Court Ordinance, 1949, promulgated on 21 June 1949. Note the two dates carefully - the Ordinance is June, the Court is August. The High Court was inaugurated at Jodhpur on 29 August 1949 by the Rajpramukh, Maharaja Sawai Man Singh II of Jaipur. Twelve judges including the Chief Justice took oath that day. The first Chief Justice was Justice Kamal Kant Verma, who held the office from 29 August 1949 to January 1950 - a very short first tenure.

From five princely courts to one High Court



- Principal seat - Jodhpur. The only Bench - Jaipur.
- Motto of the Court - Satyameva Jayate, truth alone triumphs.
- Sanctioned strength of judges - 50, that is 38 permanent plus 12 additional.
- The new High Court building at Jodhpur was inaugurated in 2019 by the President of India.
- Rajasthan has 36 judicial districts and over 1,250 subordinate courts.
- Record to keep: Justice Rajendra Mal Lodha, elevated from this High Court, became the 41st Chief Justice of India in 2014.

ASKED IN RAS

RAS Pre 2023 asked the plain date - the Rajasthan High Court was established on 29 August 1949. The same paper asked the first Chief Justice - Kamal Kant Verma. RAS Pre 2018 and 2024 asked the principal seat - Jodhpur. Three separate one-liners out of four lines of text. This paragraph is the highest return-per-word in the chapter.

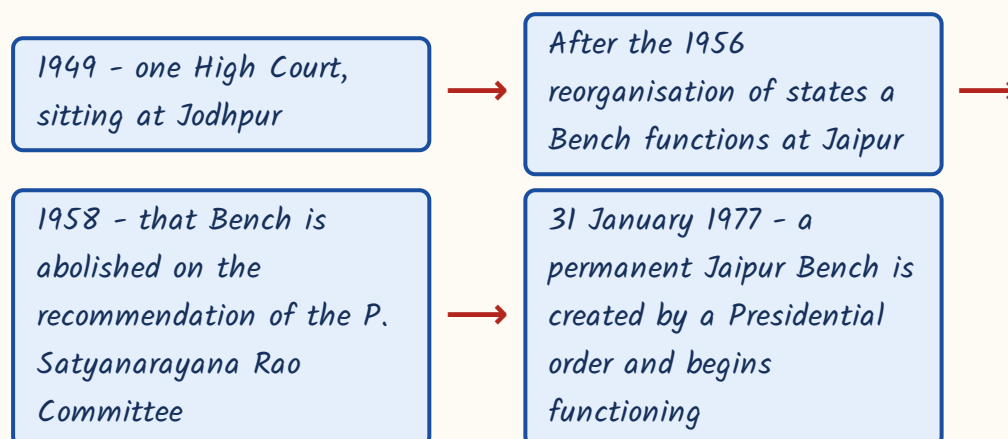
TRAP

Jaipur is the state capital but it is NOT the seat of the High Court. The principal seat is Jodhpur; Jaipur only has a Bench. RPSC sets this both as a straight one-liner and as a hidden wrong option in a NOT-correct question.

The Jaipur Bench - three dates, one story

After the foundation date, this is the most asked administrative fact about the Court. The point to grasp is that the Bench at Jaipur has not existed continuously. It came, it was shut down, and it came back nineteen years later. Examiners love a fact with a gap in the middle.

The Jaipur Bench in three moves



- The committee that recommended the 1958 abolition - P. Satyanarayana Rao Committee.
- The permanent Bench of 1977 came through a Presidential order, not a state law.
- The date to write is 31 January 1977 - the day the permanent Jaipur Bench began functioning.
- Result: Rajasthan has one seat (Jodhpur) and one Bench (Jaipur), nothing else.

ASKED IN RAS

RAS Pre 2024 set the Jaipur Bench as a statement question - the Bench abolished in 1958, a permanent Bench functioning from 31 January 1977. The examiner is testing the year pair 1958 and 1977 together, not either date alone.

YAAD RAKHO

Yaad rakho the rhythm - 56 baitha, 58 band, 77 shuru. It sat after the 1956 reorganisation, shut in 1958, restarted on 31 January 1977. And the committee name has Rao in it - Satyanarayana Rao ne Bench band karvaayi.

The constitutional skeleton - Articles 214 to 231

Everything the High Court is and does sits in Part VI, Chapter V of the Constitution, Articles 214 to 231. RPSC's favourite format here is Article matching, and its favourite trick is a NOT-correctly-matched pair. So do not learn these as prose. Learn them as a two-column list you can recite in either direction. Two things worth noticing before the tables: the Constitution fixes no maximum number of judges for a High Court, and the judges' salaries are

charged on the Consolidated Fund of the State while their pensions are charged on the Consolidated Fund of India.

High Court Articles - structure and the judges

Article	Provision
214	A High Court for each State
215	High Court is a court of record, may punish for contempt of itself
216	Composition - Chief Justice and such other judges as the President may appoint
217	Appointment of a judge, qualifications, tenure up to 62 years
219	Oath of office, administered by the Governor of the State
220	Bar on practice after being a permanent judge, except in the Supreme Court and other High Courts
221	Salaries charged on the Consolidated Fund of the State; pensions on the Consolidated Fund of India

High Court Articles - working and administration

Article	Provision
222	Transfer of a judge from one High Court to another, by the President after consultation with the CJI
223	Appointment of an acting Chief Justice
224	Additional and acting judges
224A	Retired judges may sit at sittings of a High Court
226	Power to issue writs, for fundamental rights and for any other purpose
227	Power of superintendence over all courts and tribunals in its territory
228	Transfer to itself of a case involving a substantial question of constitutional law
229	Officers and servants of the High Court, appointed by the Chief Justice
231	A common High Court for two or more States

TRAP

Article 231 is a common High Court for two or more states - nothing to do with judges' retirement age. RPSC has used exactly this false pair, Article 231 against retirement age, in a NOT-correctly-matched question. Retirement at 62 comes from Article 217.

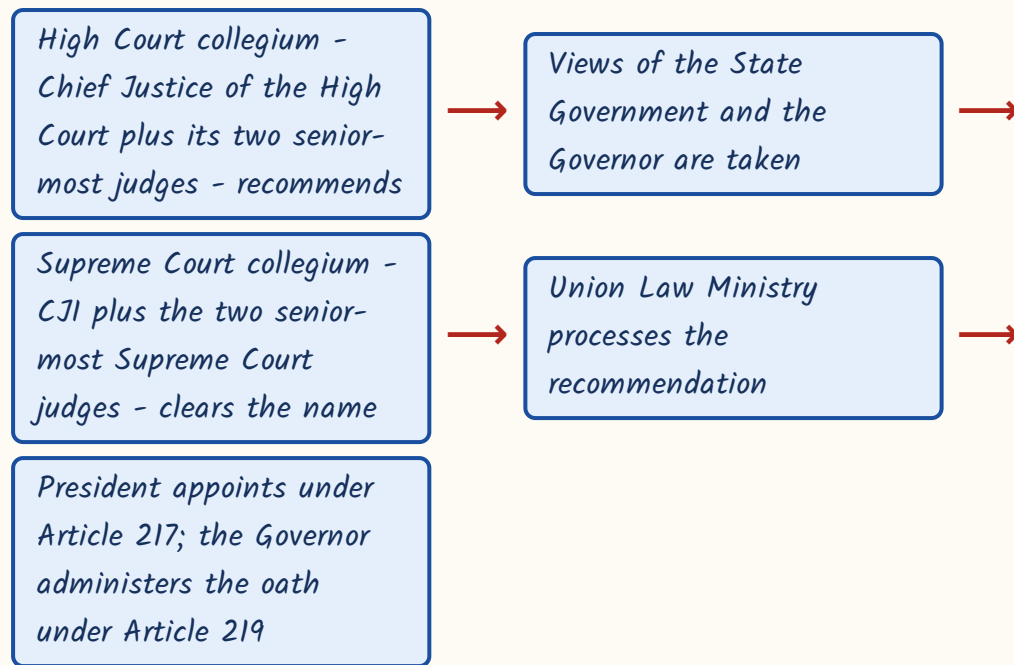
Becoming a judge - qualification and the consultation process

Two separate things get asked here and students mix them. First, who is eligible. Second, who is consulted before the appointment. Keep them in separate boxes in your head.

- Must be a citizen of India.
- Must have held judicial office in India for at least ten years, OR have been an advocate of a High Court for at least ten years.
- The Constitution prescribes NO minimum age for a High Court judge.
- A distinguished jurist can be appointed to the Supreme Court, but not to a High Court - that route does not exist here.
- Appointment is by the President, under Article 217.

Now the consultation. Article 217 says the President appoints after consultation with the Chief Justice of India, the Governor of the State, and - for a judge other than the Chief Justice - the Chief Justice of that High Court. Over that constitutional text the courts have layered the collegium system. The Second Judges Case of 1993 made the CJI's advice binding and created the collegium; the Third Judges Case of 1998 fixed its composition. The 99th Constitutional Amendment tried to replace it with the National Judicial Appointments Commission and the Supreme Court struck that down in 2015.

How a Rajasthan High Court judge is actually appointed



ASKED IN RAS

RAS Pre 2018 and again 2024 asked the consultation trio. The answer they want is the third name - the Chief Justice of that High Court, alongside the CJI and the Governor. In 2024 it also came as a statement set on the collegium and the NJAC being struck down in 2015.

YAAD RAKHO

Article 217 ke teen - CJI, Governor, Chief Justice of that High Court. And keep the two collegiums apart: for the High Court's own recommendation it is CJ + 2 of that High Court; at the top it is CJI + 2 of the Supreme Court.

Oath, tenure, transfer and removal

A High Court judge is appointed by the President but sworn in by the Governor.
That split is itself an examinable point, because students assume the appointing

authority also administers the oath. It does not.

- Article 219 - oath administered by the Governor of the State.
- Retirement age 62 years, raised from 60 by the 15th Constitutional Amendment, 1963.
- Resignation is by writing addressed to the President.
- Article 220 - after being a permanent judge he cannot plead before any court in India except the Supreme Court and other High Courts.
- Article 222 - transfer to another High Court by the President after consultation with the CJI.
- Articles 223, 224 and 224A - acting Chief Justice, additional and acting judges, and retired judges sitting again.

Removal is deliberately difficult. A judge can be removed only by an order of the President, and the President can pass that order only after an address by both Houses of Parliament in the same session, each supported by a majority of the total membership of that House and by a two-thirds majority of members present and voting. The only two grounds are proved misbehaviour and incapacity. The inquiry machinery is the Judges (Inquiry) Act, 1968.

TRAP

The Constitution never uses the word impeachment for judges - impeachment in the Constitution is only for the President. For judges the word is removal. Second trap in the same area: salaries of judges are charged on the Consolidated Fund of the State, but pensions are charged on the Consolidated Fund of India. RPSC swaps the two funds.

Jurisdiction - what the Rajasthan High Court can actually do

Do not learn jurisdiction as a vague list. Learn it as four buckets - writ, appellate, supervisory and record - plus one negative that RPSC likes. The negative is that the Rajasthan High Court has no ordinary original civil jurisdiction. That exists only in the chartered High Courts, the old presidency courts of Calcutta, Bombay and Madras. Any option saying the Rajasthan High Court tries ordinary civil suits at first instance for Jaipur or Jodhpur is wrong.

- Writ jurisdiction - Article 226, over any authority within its territorial jurisdiction.
- Appellate jurisdiction - civil and criminal appeals from district and subordinate courts.
- Supervisory jurisdiction - Article 227, over all courts and tribunals except military tribunals.
- Court of record - Article 215, may punish for contempt of itself.
- Article 228 - it can pull up a case from a subordinate court if a substantial question of constitutional law is involved.
- No ordinary original civil jurisdiction.
- The five writs are the same under both Articles - habeas corpus, mandamus, prohibition, certiorari, quo warranto.
- Habeas corpus is the only writ that can also be issued against a private person.
- The territorial reach of Article 226 was widened by the 15th Amendment, 1963 - the cause of action test.

Article 226 versus Article 32 - the difference that gets asked

Article 226 - High Court	Article 32 - Supreme Court
Writs for fundamental rights AND for any other purpose	Writs only for enforcement of fundamental rights
Wider in scope - covers legal rights too	Narrower in scope
A discretionary remedy	Itself a fundamental right, under Part III
Cannot be suspended as such; it is not a fundamental right	Can be suspended during a National Emergency under Article 359
Runs over the territory of that state and authorities within it	Runs over the whole of India

Public interest litigation reaches the Rajasthan High Court through Article 226. There is no separate PIL Article. The constitutional support underneath it is Article 39A, the Directive Principle on equal justice and free legal aid, which is also the parent idea behind the whole legal services machinery in the next section. RPSC asked about Article 39A in 2018, 2023 and 2024, so treat 39A as a High-Court-chapter fact even though it sits in Part IV.

Article 229, the Registrar and the Advocate General

Article 229 is a small Article with a big idea. If the state government controlled the High Court's own staff, it would control the Court sideways. So Article 229 says appointments of officers and servants of a High Court are made by the Chief Justice of that High Court, or by some other judge or officer directed by him. That is why the Registrar General of the Rajasthan High Court is a High Court appointment, not a state government appointment. One qualification - rules about salaries, allowances, leave or pensions of that staff need the Governor's approval. Article 146 is the identical provision for the Supreme Court. The Registrar General heads the registry and is the

administrative head of the Court's establishment, and the administrative expenses of the High Court are charged on the Consolidated Fund of the State.

ASKED IN RAS

RAS Pre 2018 and RAS Pre 2023 both asked this. Who appoints officers and servants of the Rajasthan High Court, including the Registrar General?

Answer - the Chief Justice of the High Court, or a judge or officer directed by him. It is a two-time repeat, so treat Article 229 as guaranteed material.

The Advocate General is the state's counterpart of the Attorney General, and this chapter is where he is asked. He is appointed by the Governor under Article 165, must be qualified to be appointed a judge of a High Court, holds office during the pleasure of the Governor and draws such remuneration as the Governor determines. He is the highest law officer of Rajasthan, not a judge and not a member of the Council of Ministers.

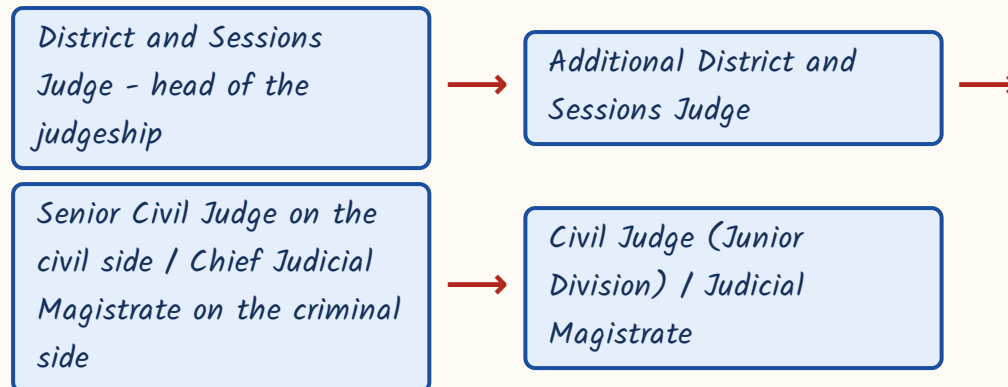
- Article 165 - appointment of the Advocate General by the Governor.
- Qualification - the same as for a High Court judge; there is no fixed tenure.
- Article 177 - he has the right to speak and take part in the proceedings of either House of the state legislature, and any committee of which he is a member.
- He has NO right to vote in the House. This is the standard wrong option.

The subordinate judiciary - the pyramid below the High Court

Below the High Court sits the district judiciary, and the whole of it is under the High Court's control, not the state government's. That single sentence answers a large share of the questions in this area. The unit is the judgeship, usually one per judicial district, headed by the District and Sessions Judge. The same officer

is called District Judge when doing civil work and Sessions Judge when doing criminal work - one post, two names.

The ladder in a Rajasthan judicial district



Articles 233 to 237 - the subordinate judiciary

Article	Provision
233	District judges appointed, posted and promoted by the Governor in consultation with the High Court
233(2)	Direct recruitment of an advocate of at least seven years standing, on the High Court's recommendation
234	Recruitment of other judicial officers by the Governor, on consultation with the State Public Service Commission and the High Court
235	Control over district and subordinate courts - posting, promotion, leave - vested in the High Court
236	Definitions of district judge and judicial service
237	Power to apply these provisions to certain classes of magistrates

- Rajasthan Judicial Service (RJS) - the Civil Judge cadre, recruited through an examination conducted by the Rajasthan High Court itself.
- Rajasthan Higher Judicial Service (RHJS) - the District Judge cadre.
- Because of Article 235, transfers and disciplinary control of judicial officers are with the High Court, not the state.
- Rajasthan has 36 judicial districts and more than 1,250 subordinate courts.

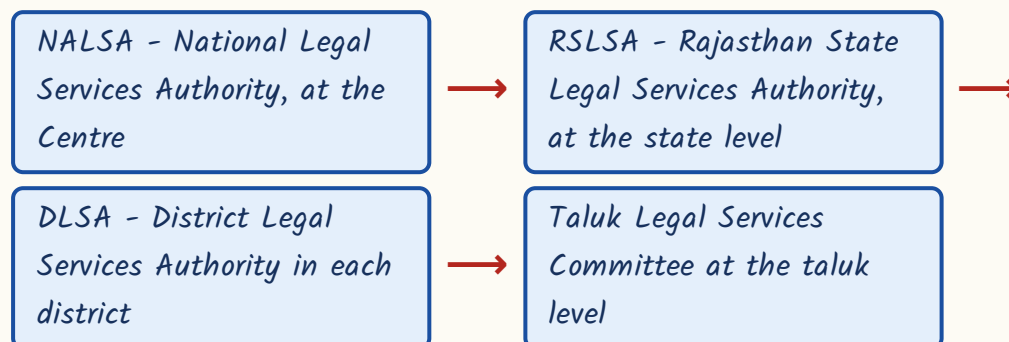
- *Rajasthan State Judicial Academy - established 16 November 2001 at Jodhpur; it trains the state's judicial officers.*
- *The e-Courts project brought case information services, e-filing and virtual hearings to Rajasthan's district courts.*

Access to justice, Lok Adalats, and the courts outside the mainstream

Article 39A directs the state to secure equal justice and free legal aid.

Parliament gave that direction machinery through the Legal Services Authorities Act, 1987. That Act builds a four-storey structure from Delhi down to the taluk, and it is the statutory parent of the Lok Adalat. Learn the structure first, then the Lok Adalat rules.

The legal services pyramid



- *In the Rajasthan State Legal Services Authority the Chief Justice of the Rajasthan High Court is the Patron-in-Chief.*
- *Its Executive Chairman is a serving or retired judge of the High Court, nominated by the Governor.*
- *A District Legal Services Authority is chaired by the District Judge of that district.*

A Lok Adalat is not a court in the ordinary sense. It is a forum for compromise - the parties settle, and the settlement is recorded as an award. What makes it powerful is the legal effect of that award. The award is deemed to be a decree of a civil court and it is final. No appeal lies against it. If a party is unhappy, the only route left is to initiate fresh proceedings on the original cause of action, not to appeal.

- Lok Adalat award = deemed decree of a civil court; final and binding; no appeal.
- Permanent Lok Adalat under Section 22B of the 1987 Act, for disputes about public utility services.
- The Permanent Lok Adalat can decide on merits if conciliation fails, which an ordinary Lok Adalat cannot.
- National Lok Adalats are held on notified dates across the country to clear pending and pre-litigation cases.

Four statutes RPSC asks in chronological order

Act	Year
Family Courts Act	1984
Legal Services Authorities Act	1987
Gram Nyayalayas Act	2008
Commercial Courts Act	2015

- Board of Revenue for Rajasthan, Ajmer - the highest court of appeal in revenue matters. Detailed revenue hierarchy belongs to the district and revenue administration chapter; here just fix the name and the city.
- Rajasthan Tax Board - also at Ajmer.
- Rajasthan Civil Services Appellate Tribunal - at Jaipur.
- Ajmer is the standing answer for Board of Revenue and Tax Board; Jaipur for the services tribunal.

CURRENT LINK

Current link, as of September 2026 - do not memorise a sitting Chief Justice of the Rajasthan High Court for this exam. The office has been in flux. On 31 August 2026 the Supreme Court Collegium resolved to recommend the transfer of Justice Sanjay K. Agrawal from the Chhattisgarh High Court and his elevation as Chief Justice of the Rajasthan High Court; at that point the Court was being run by an Acting Chief Justice. A collegium recommendation is not an appointment until the Centre notifies it. Build your answers around firsts and records - Kamal Kant Verma as first Chief Justice, R.M. Lodha as the 41st CJI from this Court - which never change.

REVISION RECAP

1. Rajasthan High Court Ordinance promulgated 21 June 1949; Court inaugurated 29 August 1949 at Jodhpur.
2. Inaugurated by Rajpramukh Man Singh II; twelve judges including the Chief Justice sworn in that day.
3. First Chief Justice - Kamal Kant Verma. Motto - Satyameva Jayate.
4. Principal seat Jodhpur, only Bench Jaipur; Jaipur is capital but not seat.
5. Jaipur Bench abolished 1958 on the P. Satyanarayana Rao Committee's recommendation.
6. Permanent Jaipur Bench began functioning 31 January 1977, by Presidential order.
7. Rajasthan High Court Rules 1952 in force from 1 October 1952; sanctioned strength 50 = 38 permanent + 12 additional.
8. 36 judicial districts, over 1,250 subordinate courts; new Jodhpur building inaugurated 2019.
9. 214 HC for each state, 215 court of record, 216 composition with no fixed maximum, 217 appointment.
10. 217 consultation trio - CJI, Governor, Chief Justice of that High Court.
11. Eligibility - Indian citizen plus ten years as judicial officer or as an advocate of a High Court; no minimum age.
12. Retirement 62, raised from 60 by the 15th Amendment 1963; oath by the Governor under Article 219.

13. Salary charged on the state's Consolidated Fund, pension on the Consolidated Fund of India (Article 221).
14. Removal - Presidential order after an address by both Houses with special majority; Judges (Inquiry) Act 1968.
15. 226 is wider than 32 - fundamental rights and any other purpose; no ordinary original civil jurisdiction in Rajasthan.
16. 229 - the Chief Justice appoints the Court's officers and servants including the Registrar General.
17. Advocate General - Article 165, Governor's appointee, may speak in the House under Article 177 but cannot vote.
18. 233 appointment of district judges, 234 other judicial officers, 235 High Court's control over subordinate courts.
19. RJS is the Civil Judge cadre recruited by the High Court; RHJS is the District Judge cadre; Judicial Academy at Jodhpur, 16 November 2001.
20. Lok Adalat award is a deemed decree, final and unappealable; Permanent Lok Adalat under Section 22B; Board of Revenue and Tax Board both at Ajmer.